

UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF INDIANA

Alix Charlestan, an individual; Stevenson Charlestan, an individual; Standford Jean Pierre, an individual; Alix Charlestan as Legal Guardian for J.C., a minor; Wolf Vensta Charlestan, an individual; and Anderelys Charles aka Anderly Charles, an individual,

Plaintiff(s)

CASE NO.: 1:26-cv-1381-JPH-MG
DIVISION:

v.

Federal Express Corporation, Successor-by - merger to Fedex Ground Package System, Inc., a Delaware corporation; and Robert Smith, an individual,
Defendant(s).

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FILED

06/29/2026

U.S. DISTRICT COURT
SOUTHERN DISTRICT OF INDIANA
Kristine L. Seufert, Clerk

COMPLAINT FOR DAMAGES

COMES NOW the Plaintiffs Alix Charlestan, an individual; Stevenson Charlestan, an individual; Standford Jean Pierre, an individual; Alix Charlestan as Legal Guardian for J.C., a minor; Wolf Vensta Charlestan, an individual; and Anderelys Charles aka Anderly Charles, an individual (hereinafter “Plaintiffs”), by and through the undersigned counsel, and hereby file this Complaint and sues the Federal Express Corporation, Successor-by-merger to Fedex Ground Package System, Inc., a Delaware corporation; and Robert Smith, an individual (hereinafter “Defendants”) and alleges as follows:

PARTIES, VENUE, AND JURISDICTION

1. This is an action for damages in excess of Fifty Thousand Dollars and Zero Cents (\$75,000.00).
2. The Plaintiff Alix Charlestan is a citizen of the State of Indiana and is a natural person over

the age of 21 and otherwise *sui juris*.

3. The Plaintiff Stevenson Charlestan is a citizen of the State of Indiana and is a natural person over the age of 21 and otherwise *sui juris*.
4. The Plaintiff Standford Jean Pierre is a citizen of the State of Indiana and is a natural person over the age of 21 and otherwise *sui juris*.
5. The Plaintiff Alix Charlestan as Legal Guardian for J.C., a minor, is a citizen of the State of Indiana and is a natural person over the age of 21 and otherwise *sui juris*.
6. The Plaintiff Wolf Vensta Charlestan is a citizen of the State of Indiana and is a natural person over the age of 21 and otherwise *sui juris*.
7. The Plaintiff Rochellailee Adeoye is a citizen of the State of Indiana and is a natural person over the age of 21 and otherwise *sui juris*.
8. The Plaintiff Rochellailee Adeoye is a citizen of the State of Indiana and is a natural person over the age of 21 and otherwise *sui juris*.
9. Defendant Federal Express Corporation, Successor-by-merger to Fedex Ground Package System, Inc. (hereinafter “FEDEX” or “OWNER”) is, and at all times material hereto was, a for-profit corporation created and existing under the laws of the State of Delaware whose principal business is located at 3610 Hacks Cross Road, Memphis, TN 38125.
10. Defendant Robert Smith (hereinafter “SMITH” or “DRIVER”) is, and at all times material hereto was, a *sui juris* individual who, upon information and belief, is a resident of the State of New York.
11. In addition to the Defendant(s) set forth herein, there are likely other parties who may well be liable to Plaintiff, but respecting whom Plaintiff currently lack specific facts to permit them to name such persons as Defendants. By not naming such persons or entities at this

time, Plaintiff is not waving their rights to amend this pleading to add such parties, should the facts warrant adding such parties.

12. This Court has subject matter jurisdiction because the amount in controversy does exceed Seventy-Five Thousand Dollars (\$75,000.00), exclusive of interest, costs and attorneys' fees, and diversity of citizenship exists as to all Plaintiff(s) and all Defendant(s).

13. This Honorable Court has personal jurisdiction over Defendant because the Defendant's tortious activity occurred in Dallas, Texas, and the Defendant was engaged in business within the State of Texas.

14. Venue of this action is proper in this Court as the Defendant's tortious activity occurred within the Northern District of Texas.

GENERAL ALLEGATIONS

15. On July 6, 2024, FEDEX owned and operated a business whose activities included transporting tangible items across the United States via larger commercial, tractor-trailer type trucks.

16. On July 6, 2024, SMITH was an employee, officers, or agent of FEDEX, and was operating a large, commercial 2023 Freightliner Truck ("Freightliner") on the highways of the State of Indiana. Specifically, SMITH operated said vehicle with the full permission of FEDEX and as part of his duties as an employee of FEDEX.

17. On July 6, 2024, Plaintiffs were legally and cautiously traveling westbound on Interstate 70 in Wayne County, Indiana near mile marker 154.4.

18. On July 6, 2024, SMITH negligently and recklessly operated the Freightliner east on Interstate 70, crossed the median, caused serious debris to scatter across the highway, and caused said debris to violently strike the vehicle occupied by the Plaintiffs.

19. Due to the actions of Defendants, Plaintiffs were each seriously injured.
20. At all times material hereto, SMITH was operating the Freightliner within the scope of his employment with and under FEDEX.
21. At all times material hereto, SMITH was operating the Freightliner within the time and space limitations prescribed and/or permitted by FEDEX.
22. At all times material hereto, SMITH was operating the Freightliner with the purpose, at least in part, to accomplish the tasks required by FEDEX.
23. Section 392.1 of the Code of Federal Regulation requires that “[e]very motor carrier, its officers, agents, representatives, and employees responsible for the management, maintenance, operation, or driving of commercial motor vehicles, or the hiring, supervising, training, assigning, or dispatching of drivers, shall be instructed in and comply with the rules in this part.” 49 CFR 392.1 (2022).
24. Section 392.2 continues by stating “[e]very commercial motor vehicle must be operated in accordance with the laws, ordinances, and regulations of the jurisdiction in which it is being operated. However, if a regulation of the Federal Motor Carrier Safety Administration imposes a higher standard of care than that law, ordinance or regulation, the Federal Motor Carrier Safety Administration regulation must be complied with.” 49 CFR 392.2 (2022)
25. SMITH failed to follow the Code of Federal Regulations as established by the Federal Motor Carrier Safety Administration, as well as the laws of the State of Indiana regarding the operation of the Freightliner, a large commercial tractor trailer.
26. The violent collision between the vehicle occupied by the Plaintiffs and the debris caused by the Defendants’ actions, the damage to the Plaintiff’s vehicle, and the damages and

physical injuries to the Plaintiffs' persons were directly and proximately caused by the actions of the Defendants.

COUNT I – NEGLIGENCE (RESPONDEAT SUPERIOR)

Plaintiffs hereby adopt and re-allege the allegations set forth in the Paragraphs above as though fully and expressly set forth herein and further allege as follows:

27. At all times material hereto, the Freightliner is owned and registered to FEDEX as a commercial vehicle.
28. At all times material hereto, SMITH was and employee and/or agent of FEDEX.
29. Prior to and at the time of the impact with Plaintiff's vehicle described herein, SMITH was engaged in the scope of his employment and in furtherance of FEDEX's business.
30. At all times material hereto, Defendants owed a duty to operate the Freightliner in a careful and prudent manner so as not to endanger the others on the roadways, including Plaintiffs.
31. At all times material hereto, Defendants breached said duty by negligently and recklessly operating the Freightliner and causing said vehicle to violently strike and severely damage Plaintiff's vehicle.
32. As a direct and proximate result of the negligent and reckless operation of the Freightliner by Defendant's, Plaintiffs have suffered serious and permanent bodily injuries in and about their bodies and extremities. Moreover, Plaintiffs have suffered, and will continue to suffer, damages including, but not limited to, the following:
 - a. Permanent bodily injuries within a reasonable degree of medical probability;
 - b. Pain and suffering;
 - c. Disability, both temporary and permanent, within a reasonable degree of medical probability;

- d. Disfigurement;
- e. Mental anguish;
- f. Lost capacity for the enjoyment of life;
- g. Loss of earnings;
- h. Loss of earning capacity; and
- i. Significant medical expenses incurred in the treatment of related injuries.

WHEREFORE, Plaintiffs Alix Charlestan, an individual; Stevenson Charlestan, an individual; Standford Jean Pierre, an individual; Alix Charlestan as Legal Guardian for J.C., a minor; Wolf Vensta Charlestan, an individual; and Anderelys Charles aka Anderly Charles, an individual respectfully demand judgment against Defendant Federal Express Corporation, Successor-by-merger to Fedex Ground Package System, Inc., a Delaware corporation, for an amount in excess of \$75,000.00 plus costs, interest, and such other relief as this Honorable Court deems just and proper.

COUNT II: NEGLIGENCE (NEGLIGENT ENTRUSTMENT OF INHERENTLY DANGEROUS INSTRUMENT)

Plaintiffs hereby adopt and re-allege the allegations set forth in the Paragraphs above as though fully and expressly set forth herein and further allege as follows:

- 33. At all times material hereto, FEDEX owned and maintained the Freightliner.
- 34. At all times material hereto, FEDEX did extend permissive use, both express and/or implied, to the SMITH to operate and use the Freightliner.
- 35. At all times material hereto, SMITH was operating the Freightliner with the express permission of FEDEX.

36. Pursuant to Indiana law, the owner of a large commercial motor vehicle is liable for the negligent acts of a permissive user of the same.

37. At all times material hereto, SMITH operated the Freightliner negligently and recklessly, thereby causing the Freightliner to violently crash, cause debris across, the road, and cause the vehicle occupied by Plaintiffs to hit said debris.

38. As a direct, proximate, and foreseeable result of the negligence of the SMITH, for which FEDEX is liable as the vehicle owner, the Plaintiffs suffered serious and permanent bodily injuries in and about their bodies and extremities. Moreover, Plaintiffs have suffered, and will continue to suffer, damages including, but not limited to, the following:

- a. Permanent bodily injuries within a reasonable degree of medical probability;
- b. Pain and suffering;
- c. Disability, both temporary and permanent, within a reasonable degree of medical probability;
- d. Disfigurement;
- e. Mental anguish;
- f. Lost capacity for the enjoyment of life;
- g. Loss of earnings;
- h. Loss of earning capacity; and
- i. Significant medical expenses incurred in the treatment of related injuries.

WHEREFORE, Plaintiffs Alix Charlestan, an individual; Stevenson Charlestan, an individual; Standford Jean Pierre, an individual; Alix Charlestan as Legal Guardian for J.C., a minor; Wolf Vensta Charlestan, an individual; and Anderelys Charles aka Anderly Charles, an

individual respectfully demand judgment against Defendant Federal Express Corporation, Successor-by-merger to Fedex Ground Package System, Inc., a Delaware corporation, for an amount in excess of \$75,000.00 plus costs, interest, and such other relief as this Honorable Court deems just and proper.

COUNT III: NEGLIGENCE

Plaintiffs hereby adopt and re-allege the allegations set forth in the Paragraphs above as though fully and expressly set forth herein and further allege as follows:

39. At all times material hereto, SMITH owed a duty to operate the Freightliner in a careful, prudent, and lawful manner so as not to endanger others on the roadways, including Plaintiffs.

40. SMITH breached said duty by negligently and recklessly operating the Freightliner and causing said vehicle to violently crash, cause debris across, the road, and cause the vehicle occupied by Plaintiffs to hit said debris.

41. As a direct and proximate result of SMITH's breach of this duty, the Plaintiffs suffered serious and permanent bodily injuries in and about their bodies and extremities. Moreover, Plaintiffs have suffered, and will continue to suffer, damages including, but not limited to, the following:

- j. Permanent bodily injuries within a reasonable degree of medical probability;
- k. Pain and suffering;
- l. Disability, both temporary and permanent, within a reasonable degree of medical probability;
- m. Disfigurement;
- n. Mental anguish;

- o. Lost capacity for the enjoyment of life;
- p. Loss of earnings;
- q. Loss of earning capacity; and
- r. Significant medical expenses incurred in the treatment of related injuries.

WHEREFORE, Plaintiffs Alix Charlestan, an individual; Stevenson Charlestan, an individual; Standford Jean Pierre, an individual; Alix Charlestan as Legal Guardian for J.C., a minor; Wolf Vensta Charlestan, an individual; and Anderelys Charles aka Anderly Charles, an individual, respectfully demand judgment against Defendant Robert Smith, an individual, for an amount in excess of \$75,000.00 plus costs, interest, and such other relief as this Honorable Court deems just and proper.

DEMAND FOR JURY TRIAL

WHEREFORE, the Plaintiffs demand a trial by jury of all issues so triable as a matter of right and reserves the right to amend this Complaint to see punitive damages.

RESERVATION OF RIGHTS

Plaintiffs reserves the right to further amend this Complaint, upon the completion of their investigation and discovery, to assert any additional claims for relief against Defendants or against any other parties as may be warranted under the circumstances allowed by law.

DATED June 29, 2026.

Respectfully submitted,

/s/ Alix Charlestan

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